

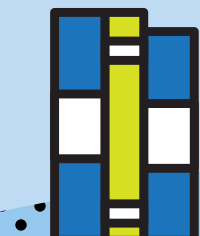
FROM HODU TO ALEIN

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My Asked Shaylos ing Tefillah Betzibbur nabad House

PULL OUT THIS
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TALLIS BAG!



WRITTEN BY

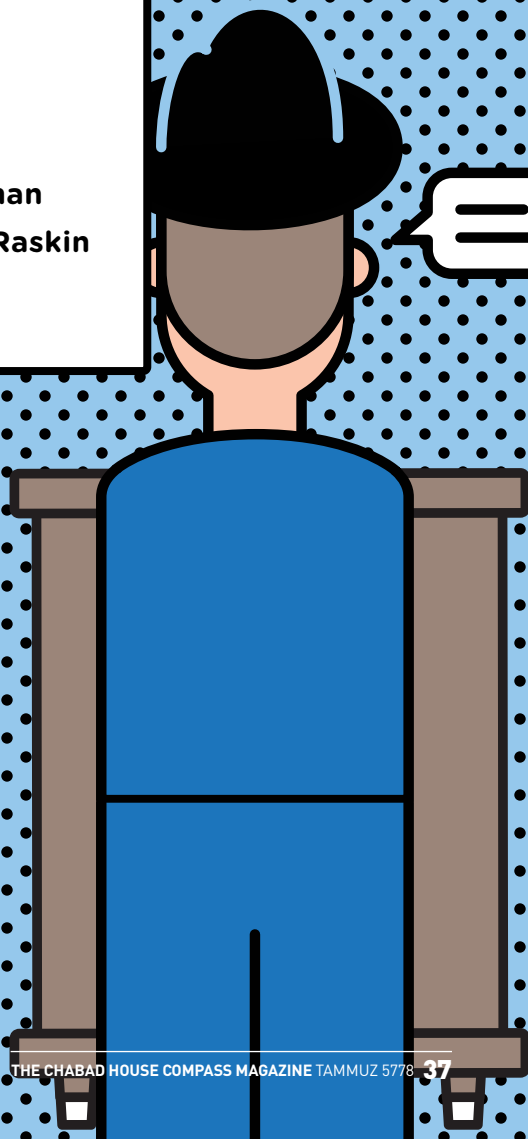
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When Moshiach comes, every Bais Chabad and shul will be transported to Eretz Yisrael and become an extension of the Beis Hamikdash.¹ This is because, as mikdashei me'at, their ultimate function is identical, namely, to illuminate their respective areas of influence with Elokus and achieve a dirah betachtonim.

It is self-understood that in order for a Bais Chabad or shul to fulfill its purpose and draw down the shechinah, fulfilling the mission the Rebbe has placed upon us, the davening in that Bais Chabad or shul must operate within the laws of Shulchan Aruch and the directives of the Rebbe. It is therefore critical that we know what is expected of us in that regard.

The purpose of this article is to offer guidelines with regard to issues that may arise in a contemporary Chabad House or shul in relation to davening.²

A NUMBER OF IMPORTANT POINTS

 It is essential that every Chabad House director and rabbi of a shul have a rov moreh hora'ah b'poel who can answer the difficult shaylos that often arise. Very often the answers may be counterintuitive and require a highly balanced approach, harmonizing the needs of the Chabad House and hafatzah with the requirements of halachah.

 Furthermore, consideration must always be given to the type of shul in question. A synagogue that bears the name Chabad or Chabad House is beholden by a certain standard, as per the views and minhagim of our Rebbeim. A non-Chabad shul may have different minhagim that must also be upheld.

 One must also bear in mind the direction the Rebbe constantly gave in relation to shuls and nusach, namely, to avoid machlokes (see sidebar on p. 47). Machlokes is an issur de'oraysa,³ and to avoid it by sometimes choosing to ignore a breach of a minhag, or even acting in accordance with another's minhag, is the preferred option to an argument.

 A shliach must also be careful with regard to setting precedents. You might institute some leniency that you are not really happy with, and then find it very difficult to change in the future.

 Please note that some of the rulings and suggestions made here are a matter of nuance and approach; other rabbonim may take slightly different approaches. That is the way of Torah. When in doubt, please consult the rov from whom you usually take advice.

¹ See *Megillah* 29a and *Maharsha* there.

² Please see *Compass Magazine* vol. 11, pp. 24-33 and vol. 12, pp. 24-33 for a two-part series on mechitzah, and *ibid.*, vol. 19 pp. 32-44 for an article answering krias hatorah-related shaylos.

³ See *Sanhedrin* 110a.



AMOUNT OF MISPALLELIM

Q&A

1

WHAT SHOULD BE DONE IF ONE OF THE TEN WALKS OUT IN THE MIDDLE OF DAVENING?⁴

If the tenth man walks out...	What should the rest of the minyan do?
SHACHARIS	
In the middle of Pesukei Dezimrah	Do not say Kaddish and Barchu
After Barchu but before Shemoneh Esrei	Do not say Chazaras Hashatz or any subsequent Kaddeishim
Before beginning Chazaras Hashatz	Do not say Chazaras Hashatz ⁵
After beginning Chazaras Hashatz	Finish Chazaras Hashatz (including Kedushah) and say Kaddish Shalem (after Uva Letzion). However, do not do Krias Hatorah ⁶ or say the other Kaddeishim (including the Chatzi Kaddish after Tachanun ⁷)
In the middle of Shir Shel Yom, Ein Keilokeinu, Aleinu, etc.	Do not say the subsequent Kaddish
In middle of Kaddish	Finish Kaddish
KRIAS HATORAH	
In the middle of Krias Hatorah	Finish Krias Hatorah and say Chatzi Kaddish. However, do not call someone up for Maftir; the seventh oleh should read the Haftorah without its berachos ⁸
In the middle of the Haftorah	Finish the Haftorah and say the concluding berachos ⁹
MINCHAH	
In the middle of Ashrei	Do not say Chatzi Kaddish
In the middle of silent Shemoneh Esrei, after beginning Chazaras Hashatz; in the middle of Aleinu; in the middle of Kaddish	See above, "Shacharis"
MAARIV	
In the middle of Birchos Krias Shema or Krias Shema	Say the Chatzi Kaddish preceding Shemoneh Esrei, but not the Kaddish Shalem after Shemoneh Esrei
In the middle of Shemoneh Esrei	Say Kaddish Shalem, but not the other Kaddeishim
In the middle of Aleinu; in the middle of Kaddish	See above, "Shacharis"

Everything in this chart only applies if at least six men remain. If less than six men remain, the davar shebikedushah (Chazaras Hashatz, Kaddish, etc.) must be discontinued.¹⁰

4. Unless otherwise noted, the laws in this chart are taken from *Alter Rebbe's Shulchan Aruch*, 55:3-4.

5. *Mishnah Berurah* 55:16. No further Kaddeishim may be said either (Ibid., *Biur Halachah* s.v. U'tefillas Arvis).

6. If at any time a minyan arrives, you may lein at that point (for more on this topic, see *Compass Magazine* vol. 19, p. 37).

7. See *Piskei Teshuvos* 55:8 fn. 60.

8. *Shaarei Ephraim* 7:38. *Shu"t Tzemach Tzedek*, *Orach Chaim* §76.

9. *Shaarei Ephraim* 9:32. *Shu"t Tzemach Tzedek*, *Orach Chaim* §76.

10. *Alter Rebbe's Shulchan Aruch* 55:3. If the chazan already said Hashem's name at the end of a berachah, he should first finish the berachah.

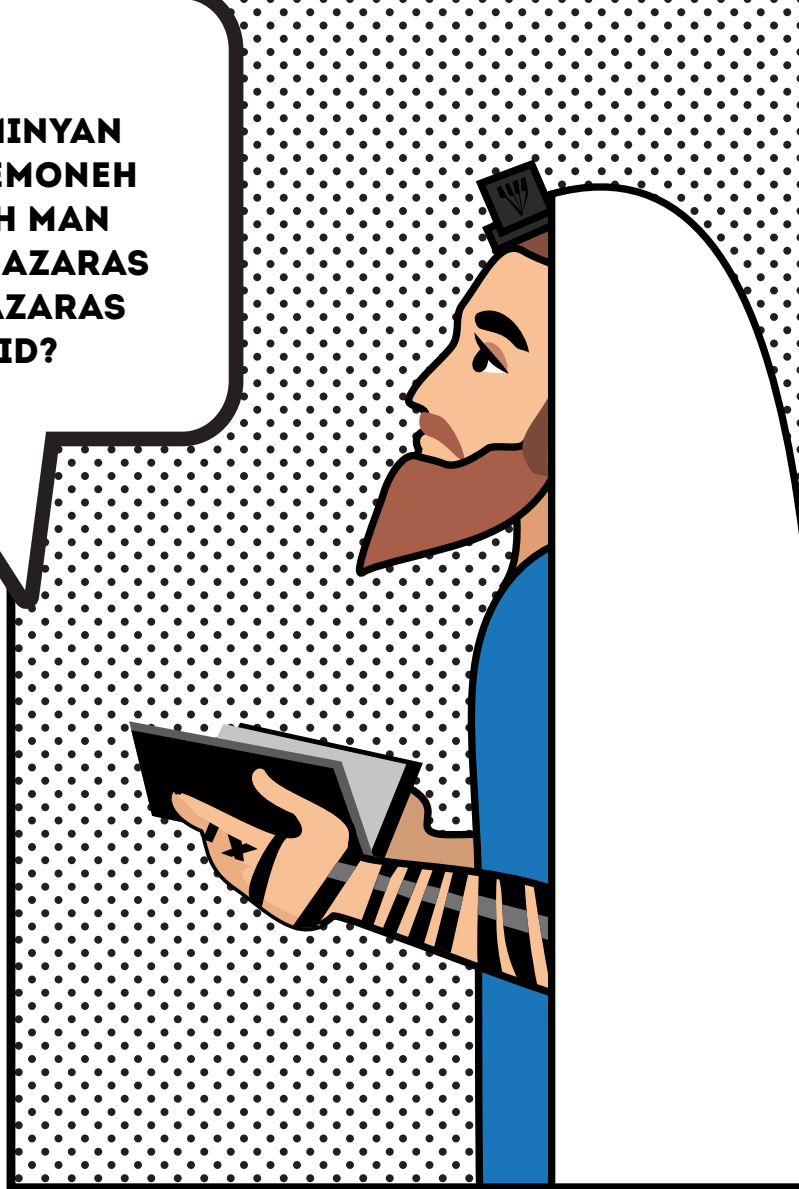
Q&A

2

IF THERE WAS NO MINYAN FOR THE SILENT SHEMONEH ESREI AND A TENTH MAN ENTERED BEFORE CHAZARAS HASHATZ, MAY CHAZARAS HASHATZ BE SAID?

In order to say the complete Chazaras Hashatz, there must have been at least six men davening Shemoneh Esrei out of a minyan of ten. However, even if there were less than ten men present at the time when the six davened, Shemoneh Esrei may still be repeated due to the *din of pores al shema*. According to this *din*, someone may repeat Shemoneh Esrei aloud for himself or for someone else who did not hear Kedushah, to give them a chance to say Kedushah. Therefore, provided six men davened Shemoneh Esrei together, even if the rest of the ten arrived only after the six had finished, any of the six may go to the amud and repeat Shemoneh Esrei. Alternatively, if necessary, any of the remaining four who have not yet davened may go to the amud and say the entire Shemoneh Esrei out loud, and his loud Shemoneh Esrei is counted also as his individual Shemoneh Esrei.¹¹

¹¹ For this entire paragraph, see *Alter Rebbe's Shulchan Aruch* 69:5 (where he paskens like the Beis Yosef, as opposed to the Radvaz cited in *Magen Avraham* and *Mishnah Berurah* ad loc.) and 124:3.



3

WHAT SHOULD BE DONE IF THERE WILL NOT BE SIX MEN DAVENING SHEMONEH ESREI?

One individual should not daven Shemoneh Esrei with everyone else. Once they have finished, he should recite his individual Shemoneh Esrei out loud, including Kedushah, until after Hakel Hakadosh. The rest of Shemoneh Esrei should be recited quietly. (This method is commonly known as “*hoyche Kedushah*.”)¹²

It should be noted that performing a *hoyche Kedushah lechat'chilah* as a substitute for a full Chazaras Hashatz in order to save time—as is common practice in many communities—is frowned upon by the Kabbalists, and is certainly not in the spirit of *minhagei Chabad*.

¹² See *Alter Rebbe's Shulchan Aruch* 69:5.

4

WHAT SHOULD BE DONE IF (THERE IS A MINYAN BUT (THERE MIGHT NOT BE NINE MEN ANSWERING AMEN TO CHAZARAS HASHATZ?

In such a case, it is recommended for the chazan to have in mind that if nine men will not answer Amen to his berachos, his repetition of Shemoneh Esrei should be considered a *tefillas nedavah*.¹³

¹³ *Mishnah Berurah* 124:19. (See *Biur Halachah* 107 d.h. *Im hu mesupak* that in a case such as this, a *tefillas nedavah* may be said even today.) Although when davening a *tefillas nedavah* it is usually necessary to add something to the *tefillah*, in this case there is no need to do so (see *Alter Rebbe's Shulchan Aruch*, 107:1 and 108:17). It should be noted that according to some rabbonim, it is preferable to do a *hoyche Kedushah* in such a case.



STATUS OF MISPALLELIM

5

MAY A BOY UNDER BAR MITZVAH BE COUNTED AS PART OF A MINYAN?

There is a widespread custom in olamishe shuls to allow the tenth male for a minyan to be a boy under bar mitzvah who is carrying a Chumash. The Alter Rebbe cites this view¹⁴ and says that it is not necessary to protest against those who follow it because they have what to rely upon. The Alter Rebbe qualifies that the boy needs to be at least six years old, and that he does not even need to carry a Chumash. He continues that when this heter is employed, only halachically required Kaddeishim (Chatzi Kaddish and Kaddish Shalem) should be recited, but not those that are solely minhag (Kaddish Yasom and Kaddish Derabanan).

What should be done in practice?

In a Chabad House it seems clear that this leniency should not be used, as the Alter Rebbe says that the primary view is the one that holds that a child may not be counted as number ten. That said, he does not totally rule out the other view. Therefore, in a situation where you have, for example, an avel who has come to shul and will be terribly disappointed if there is no minyan, or if losing the minyan on a particular day may endanger the very future of the minyan, a child may be included.¹⁵ In the case of an avel, it may even be acceptable to allow him to say Kaddish Yasom, as these Kaddeishim have become almost begeder chiyuv.¹⁶

In a non-Chabad shul where the custom has always been to allow a child to be number ten, it is not necessary to protest (as the Alter Rebbe writes), but of course the Chabad rabbi should do everything he can to ensure a proper minyan.¹⁷

¹⁴ Alter Rebbe's Shulchan Aruch, 55:5.

¹⁵ Rabbi Zalman Shimon Dworkin AH told shlichim that they may rely on this if the lack of a minyan will cause the congregants not to come to shul, and consequently not to daven (as heard from Rabbi Yosef Shusterman).

¹⁶ See the Rebbe's letter printed in the back of the Tehillim.

It should be noted that some rabbonim will not permit the recitation of Kaddish Yasom. Some add that if including a child, the chazan should not daven the silent Shemoneh Esrei (unless there will not be six mispallelim without him), see *Igros Moshe, Orach Chaim* 2:18. As mentioned in the introduction, each shliach should consult with his rov for advice in his specific situation.

¹⁷ See *Igros Kodesh* vol. 8, pp. 276-277.

6

IS THERE ANY JEWISH MAN WHO MAY NOT BE COUNTED AS PART OF A MINYAN?

As a rule, someone who has done an aveirah may still be counted for a minyan¹⁸ (and is actually an essential part of it¹⁹). However, a person who was mechalel Shabbos befarhesia used to be an exception. In days of old, such a person was considered to have the same halachic status as a non-Jew and could not be included for a minyan.²⁰ Nowadays, however, we consider him to be a tinok shenishbah and will count him for a minyan.²¹ Similarly, someone who is married to a non-Jewish woman, or a kohen who is married to a divorcee, giyores, or any other woman he may not marry, may be counted for a minyan.

However, someone who converted to another religion, rachamana litzlan, and has not reneged on that conversion, should not be counted for a minyan, even if he appears to be a tinok shenishbah.

7

IF SOMEONE COMES TO SHUL AND SAYS THAT HE IS JEWISH, IS THAT STATEMENT SUFFICIENT TO BE ABLE TO INCLUDE HIM FOR A MINYAN?

A shliach must always be concerned about setting a precedent and creating facts with potentially far-reaching results. If you have a suspicion that someone is not Jewish, it would be prudent not to count him for a minyan. However, all things considered, if someone comes to your shul and declares that he is Jewish, you are under no obligation to perform a birur Yahadus, and he may be counted for a minyan and/or given an aliyah.

Editor's note: A future article will deal with the subject of birur Yahadus in greater detail, b'ezras Hashem.

8

MAY A NON-OBSERVANT JEW SERVE AS A CHAZAN OR BAAL KOREI?

If you are the rov of a community shul, this really depends on the custom of your shul. Some shuls do not permit mechalelei Shabbos to daven at the amud, especially on the Yamim Nora'im, and you should not divert from the minhag of the shul.

In your own Chabad House you have some flexibility. Although halachah dictates that the shliach tzibbur should

¹⁸ Alter Rebbe's Shulchan Aruch 55:14.

¹⁹ See *Kerisos* 6b. *Kikar La'aden* (Chida) to *Avos* 2:4.

²⁰ See *Shulchan Aruch, Yoreh Deiah* 2:5.

²¹ See *Igros Moshe, Orach Chaim* 1:23. For a list of poskim who ruled this way, see *Piskei Teshuvos* 55:21 fn. 148. See also *Igros Kodesh* vol. 11, p. 255.

be an upright and observant individual, etc.,²² it may be acceptable to adopt the view of “Who is to judge?” and allow whomever you need to go to the amud. (For a letter of the Frierdiker Rebbe on this topic, see sidebar on p. 46.)

It is certainly important to make every effort that any permanent chazan (and even baal korei), especially for the Yamim Nora'im, be an observant Jew, even if this means hiring and bringing someone to the Chabad House for those tefillos.

9

IS THERE ANY JEWISH MAN WHO MAY NOT BE GIVEN AN ALIYAH?

Reb Moshe Feinstein rules that just about any Jewish man may be given an aliyah, including someone who has married out. The exception is if the man who married out is being given the aliyah as an act of chanifah, namely, if the one giving the aliyah is improperly seeking to find favor in the eyes of one who is not deserving of this honor. Similarly, Reb Moshe rules that someone who is mechalel Shabbos may be given an aliyah. However, he does not permit giving an aliyah to someone who is a kofer be'ikar, such as a Reform rabbi.²³ (For a letter of the Rebbe on this topic, see sidebar on p. 46.)

A Kohen who is married to a woman he may not marry (including a non-Jewish woman) may be given an aliyah²⁴ but is *not* called to rishon as a Kohen. He is also not permitted to duchen.²⁵ Once he ends the relationship, he returns to his original status. Although halachah states that he must also publicly announce his regret,²⁶ that does not need to be insisted upon.

A note to shluchim in the United Kingdom, Australia, and New Zealand:

In the United Kingdom and Australia there has been a takanah in place for decades not to give an aliyah to someone who has married out, due to the severity of this sin. A Chabad shliach in a regular shul in these countries is not permitted to depart from that practice. Similarly, in light of the Rebbe's oft-repeated answer that Chabad should not be the ones to be seen as making a breach in matters of religion,²⁷ even if a shliach has his own Chabad House he should not depart from the widely held custom, and he should not give an aliyah to someone who has married out.

As a rule, this chumra only applies to an aliyah, but not to other kibbudim such as pesichah, hagbah, and gelilah.

²² See *Alter Rebbe's Shulchan Aruch* 53:4-6. For additional sources on this topic, see *Piskei Teshuvos* 53:5-6.

²³ See *Igros Moshe, Orach Chaim* 2:51, 3:12, and 3:21.

²⁴ *Igros Moshe, Orach Chaim* 2:33.

²⁵ *Alter Rebbe's Shulchan Aruch* 128:53.

²⁶ See *Alter Rebbe's Shulchan Aruch* ad loc.

²⁷ See, for example, *Shlichus Kehilchasah* p. 161.

10

WHAT STANCE SHOULD BE TAKEN TOWARD GAY CONGREGANTS?

A man in a gay relationship is no less a tinok shenishbah than someone who has married out or is *mechalel Shabbos befarhesia* and therefore may certainly be counted for a minyan.

However, a new phenomenon has begun reaching our Chabad Houses that requires careful examination. That is the gay married couple (as opposed to a gay individual). While we permit giving an aliyah to someone who, say, is mechalel Shabbos, we do not do so if he came into shul smoking a cigarette or talking on his cellphone in a blatant manner. We say that what he does in the privacy of his home is not our business, but if he flaunts his chillul Shabbos in shul, we are not able to condone that behaviour.

Where is a gay couple in this spectrum? It seems that they can be accepted in shul, including giving them aliyos, provided they do not flaunt the fact that they are married. Once they flaunt the fact that they are married, the chillul Hashem is too difficult to ignore, and accepting them will be sending the wrong message to the rest of the congregation. Finding the right balance will be exceedingly difficult, and a posek sensitive and knowledgeable in these issues should be contacted for advice.

11

WHAT STANCE SHOULD BE TAKEN TOWARD TRANSGENDER CONGREGANTS?

According to almost all poskim, surgery and hormonal treatments cannot change the gender of a person born male or female, and this is the accepted halachah.²⁸ Again, great sensitivity must be employed in such a case, and a posek sensitive and knowledgeable in these issues should be contacted for advice.

Another, albeit rare, case is that of an androgynous (hermaphrodite), the halachos of which are relatively clear in *Shulchan Aruch*. If born with male organs, he is primarily considered a male and, according to some opinions, may even marry a female.²⁹ However, until very recently, so-called modern medicine would often try to turn the androgynous into a female. From a halachic perspective, this was always a considered a mistake (he remains an androgynous with the relevant halachos treating him primarily as a male). The medical world has since recognized it as a mistake as well, both psychologically and physiologically. When dealing with an androgynous, especially one who has been operated upon, it is necessary to obtain advice from a compassionate rov who is specially versed in these difficult halachos.

²⁸ For a comprehensive discussion of this topic, see the sefer *Dor Tahapuchos* (Rabbi Eidan Ben Ephraim, Jerusalem 5764), which received haskamos from gedolei hador such as Rav Ovadiah Yosef, Rav Zalman Nechemia Goldberg, and Rav Osher Weiss, and is considered the seminal halachic work on transgender issues.

²⁹ Rambam, *Issurei Biah* 1:15. See *Shulchan Aruch, Even Ha'ezer* 44:5.

12

**MAY I ALLOW AN
UFRUF OR KIDDUSH TO
BE MADE IN MY SHUL IF
I KNOW THE MARRIAGE
IS A FORBIDDEN ONE,
SUCH AS A KOHEN TO
A DIVORCEE?**

No, you may not. Doing so is an effective stamp of approval to the forbidden marriage. How can you wish “mazal tov” to such a union?

13

**MAY WOMEN PARTICIPATE IN THE
MINYAN IN SOME WAY?**

This is a very difficult question. On the one hand, we want to encourage full participation of women in Jewish life, especially as it pertains to Torah study. On the other hand, the mechitzah exists, and it is Reform and Conservative who have done away with it. Allowing women to partake in the service in a manner that was not traditionally done throughout the generations may be seen as turning away from Orthodoxy, even if it may technically be permissible.

The generally recommended approach is as follows: There should be no vocal participation by women during davening. It may

be permissible to allow a woman to give a dvar Torah at the kiddush after davening. Some rabbonim will allow a woman to give a derashah even from the pulpit after the completion of davening. Others will only allow that for a bas mitzvah girl. Each shliach should be in contact with his rov to ascertain what is the best standard for his particular Chabad House or shul, also ensuring (where applicable) that he does not create a pirtzah relative to the rest of the community.

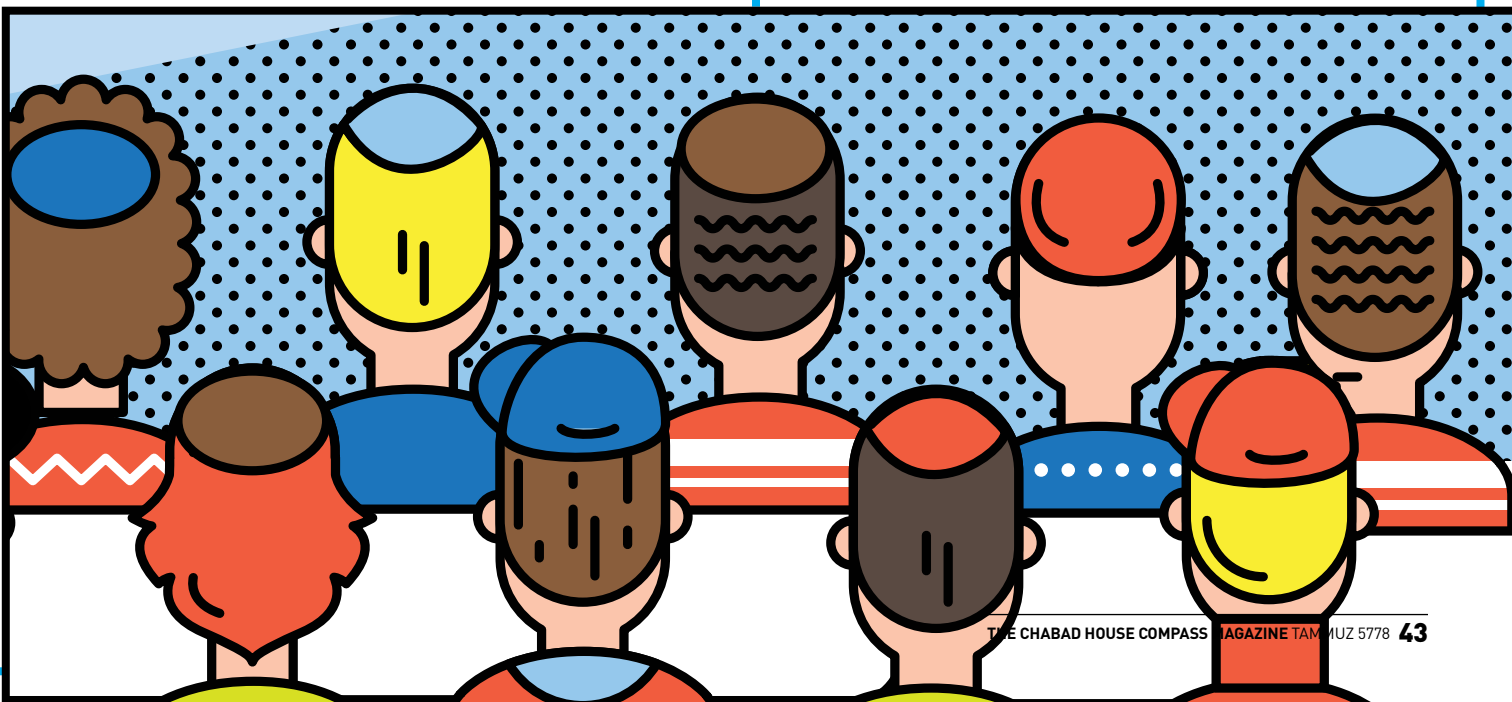
Whether a woman in mourning may recite Kaddish is a sensitive question among modern-day authorities for multiple reasons, including the fact that it appears to be a move toward Reform.³⁰ Each shliach should consult with his rov for advice in his specific situation.

14

**MAY A WOMAN RECITE HAGOMEL
AFTER GIVING BIRTH?**

The Alter Rebbe clearly states³¹ that a woman after childbirth should recite Hagomel in the ladies' section of the shul, while a minyan listens from the men's side. However, for reasons I have been unable to ascertain, this does not seem to be widely practiced in Chabad. If a woman wishes to do so, she should certainly be allowed.

³⁰ For a thorough review of the various opinions in this matter, see *Ratz Katzvi, Inyanei Nashim Bahalachah* vol. 2, §22. See also *Shlichus Kehilchasah* p. 888.
³¹ *Seder Birkas Hanehenin* 13:3.





DAVENING

15

**WHICH METHOD IS BETTER:
TO DAVEN QUICKLY AND SAY
EVERYTHING, OR TO SKIP
CERTAIN PARTS AND GIVE
EVERYONE A CHANCE TO
MEANINGFULLY PARTICIPATE?**

**WOULD THE LATTER OPTION BE
LEANING TOWARDS REFORM, WHO
REMOVED PARTS OF DAVENING IN ORDER
TO MAKE IT (EASIER) FOR PEOPLE TO
PARTICIPATE?**

The main issue with Reform was not so much that they shortened the service, but that they changed key aspects of davening in a heretical manner (for example, they removed any mention of korbanos, and they removed references to geulah and Moshiach). By contrast, there is no problem in choosing key aspects of davening for a baal teshuvah to learn to daven first.³²

That said, in a normal tefillah, the order in which Chazal set up davening should not be tampered with. Those unable to daven the entire davening should not be made to do so, but the official tefillah of the shul should not miss out any parts of davening.

16

**MAY A SHLIACH INTERRUPT IN THE
MIDDLE OF DAVENING TO ASSIST THE
CONGREGANTS (E.G., TO EXPLAIN,
GIVE INSTRUCTIONS, ANNOUNCE PAGE
NUMBERS)?**

There are differing views among Acharonim as to whether or not announcing page numbers and the like is sufficiently considered a tzorech hatefillah to allow for interruption. The best option would certainly be for cards with page numbers to be held up for all to see, or for page numbers and explanations to be announced by an individual who is

³² See *Alter Rebbe's Shulchan Aruch, mahadura kama* 1:9 ("It is better to say less supplications with kavanah than many without kavanah"). *Ibid.* 620:2 ("It is better to say less selichos slowly than many with haste").



not davening at that time.³³ If necessary, it may sometimes be recommended for the shliach to daven earlier alone, to enable him to assist the congregants without hindrance.

If these options are not practical, some rabbonim do allow a shliach (or someone else) to announce page numbers and directions in the middle of davening.³⁴ There is greater leeway to do so between chapters in Pesukei Dezimra (as opposed to within chapters, as well as in the middle of Birchos Krias Shema).³⁵

I would like to emphasize, though, that a shliach must keep in mind that making such announcements is not the preferred option, and should only be done if there is truly no other option. This is based on our specific minhag not to say Veshamru on Friday night due to a *cheshash hefsek*. Similarly, it is our specific minhag not to announce Yaaleh Veyavo on Rosh Chodesh for the same reason.³⁶ If we do not allow Yaaleh Veyavo to be announced—which is announced in almost all shuls—we should certainly avoid announcing page numbers and the like to the greatest extent possible.

³³ See *Igros Moshe, Orach Chaim* 1:22 where Reb Moshe provides these two alternatives.

³⁴ See *Haoros U'biurim* issue 820, pp. 95-97. *Ibid.* issue 846, pp. 40-41.

³⁵ *Rambam, Issurei Biah* 1:15. See *Shulchan Aruch, Even Ha'ezer* 44:5.

³⁶ *Alter Rebbe's Siddur*, Tefillas Arvis Leshabbos.

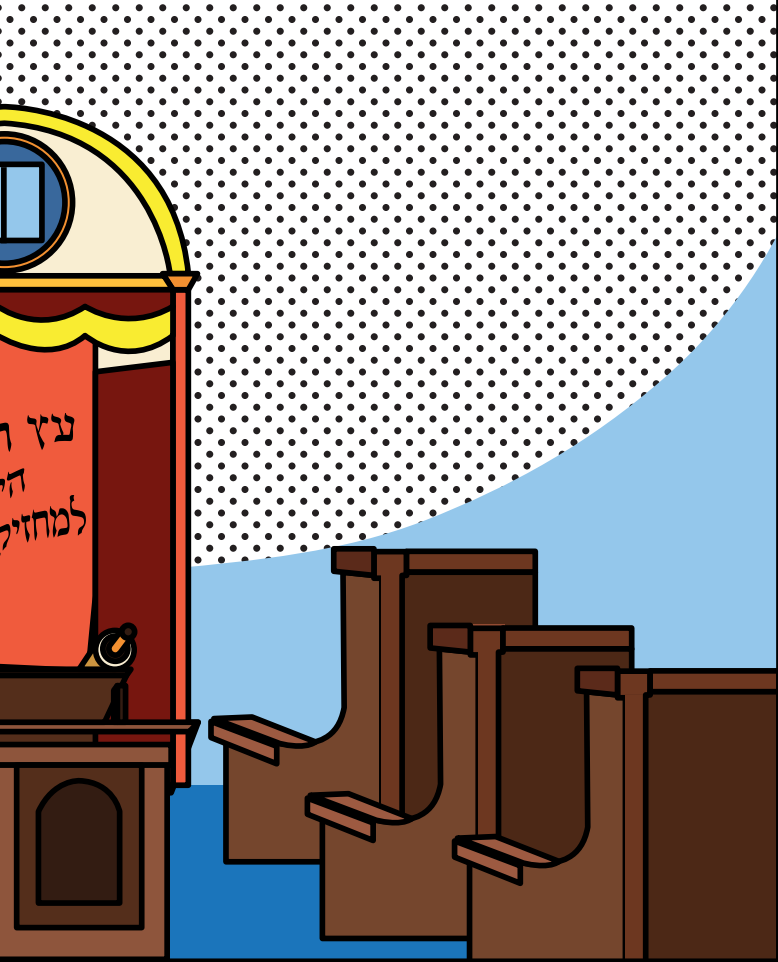
IS THERE ANY PROBLEM WITH FOLLOWING THE OLOM'ISHE MINHAG OF SINGING ADON OLAM AFTER DAVENING OR ETZ CHAIM HE BEFORE CLOSING THE ARON KODESH?

In a Chabad House, which follows, of course, Nusach Chabad, one must be careful not to tamper with the nusach by adding or subtracting anything from the nusach or seder hatefillah. This includes Anim Zemiros, Eitz Chaim He, or the like, notwithstanding the extraordinary kedushah of these tefillos. Indeed, there is a Chabad tune for Anim Zemiros, a Chabad tune for Adon Olam, and a Chabad tune for Ani Maamin. But they do not form part of our nusach or seder hatefillah, and it would not be right to insert them.

In one unforgettable farbrengen, the Rebbe encouraged the singing of Yigdal by the young Iranian escapees and by all of the other participants.³⁹ But of course, it never became part of our seder hatefillah. On the other hand, a shliach in a non-Chabad shul, where it is customary to sing other songs,

should sing and encourage the singing of those songs with the same gusto as the Rebbe did at the farbrengen.

All that said, singing Adon Olam after the last Kaddish (and thus separate from the rest of the tefillah) is perhaps okay. However, it is recommended to sometimes sing other niggunim instead of Adon Olam at that point after davening, so as to emphasize that Adon Olam is not part of the seder hatefillah.



Q&A

17

MAY CERTAIN PARTS OF DAVENING BE SAID IN ENGLISH?

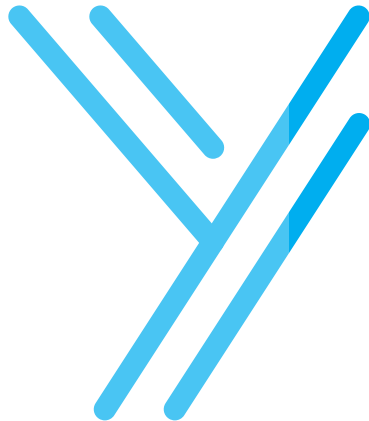
Mei'ikar hadin, there is no problem with davening in English.³⁷ However, since introducing a foreign language was one of the ways of Reform, the chazan should stick to only Lashon Hakodesh.³⁸ However, this does not stop the shliach from letting people know that, as individuals, they may daven to themselves in English. Furthermore, the shliach may join them in saying tefillos in English while the chazan continues in Hebrew.

While some rabbonim allow select parts of davening to be recited all together in English in a place where one may interrupt (e.g., Berich Shemei or Yekum Purkan), I would strongly advise against doing so.

³⁷ Alter Rebbe's *Shulchan Aruch*, 101:5.

³⁸ See *Mishnah Berurah* 101:13, quoting the Chasam Sofer. *Shu"t Levushei Mordechai* 1:9.

³⁹ *Sichos Kodesh* 5739 vol. 2, pp. 271-272.



YEMIN MEKAREVES



Giving kibbudim in shul can be a helpful tool in being mekarev others, while refusing to give a kibbud can sometimes have the opposite effect. While every decision must be grounded in halachah, the Rebbeim taught us that our general approach should be one of yemin mekareves. The following letters demonstrate this point.

בדבר האיש נכבד והנעלה הי"א באמת וקובע עתים לתורה שי' מפולין אשר הוא מנגד לאלו שבלתי ראויים להתפלל לפני העמוד, הרי ע"פ הדין צדקו דברי כבודו, אשר אמר לו כי יש דינים ידועים מי הן המה הראויים לעבוד לפני התבה, אבל במקום מחלוקת שאני. רואה אני כי צדקו דבריו ואי אפשר בשום אופן להעמיד הדבר על הדין, ומענה רך ישיב חמה, אדרבא בקירוב והתעוררות אפשר לפעול הרבה יותר מכמו בריחוק ודחי'.

ובאשר לפי דברי כבודו רואה הנני אשר האיש הזה מפולין שי' הוא למדן וירא אלקים באמת וחפץ בהאמת, יאמר נא לו בשמי כי טוב יותר ללכת בימין מקרבת ובזה אפשר לפעול יותר, ואשר כן עושים גם בקהלות גדולות המלאות ת"ל באוכלסי ישראל, כן ירבו, וכן יעשו. והשי"ת יהי בעזרם בכל אשר יעשו לטובה ולברכה.

(ממכתב כ"ק אדמו"ר הרי"ץ להרב מאיר אשכנזי, רב קהילת האשכנזים בשאנגהיי, מיום ז' מ"ח תרפ"ט, נדפס באגרות קודש חי"א ע' צז)

You write that a respected, truly G-d fearing and learned Polish Jew opposes the fact that unsuitable individuals serve as chazan. You told him that although there are certain dinim that dictate who is fitting to serve as chazan, in a case of machlokes the law is different. I see that you are halachically correct, and it is impossible to follow the strict halachah [in your situation]. Speaking softly will appease anger; to the contrary, a person can accomplish much more through drawing others close and inspiring them then through distancing them and pushing them away.

Since I see, based on your description, that the Polish individual is learned and truly G-d fearing and desires the truth, please tell him in my name that it is better and more effective to adopt the approach of yemin mekareves, and this is what is done in large communities full of Jews. May Hashem assist you in whatever you do for good and blessing.

(Letter of the Friediker Rebbe to Reb Meir Ashkenazi, rov of the Ashkenazi community in Shanghai, dated 7 Cheshvan 5689, Igros Kodesh vol. 11, p. 97)

ע"ד העלי' לתורה של כאלו שאין ברור אופן שמירתם התורה והמצוה.

כבר שאלוני פעם עד"ז. . ועניתי אז, ומענה זו גם עתה בתקפו הוא, שהחלטה בזה תלוי' בכו"כ פרטים, הן בהנוגע לאופן הנהגתו של זה הרוצה לעלות לתורה והן בהנוגע להנמצאים בביהכ"נ והרושם עליהם, שכלל העניינים הנעשים בפרהסיא גם זה צריך להביאו בחשבון, ובהתאם להבירור בהאמור יש על אלו הנמצאים על אתר להחליט, אלא שמוכן ע"פ מרז"ל לעולם תהא ימין מקרבת ושמאל וכו' שבאופן כזה צריך להתנהג גם בשאלה האמורה, ובפרט כשיש ספק אם צריך בכלל לדחות אפילו בשמאל, והרי כבר נאמר, דרכי' דרכי נועם וכל נתיבותי' שלום.

(ממכתב כ"ק אדמו"ר מיום י"ח מ"ח תשי"ז, נדפס באגרות קודש חי"ד ע' צה ואילך)

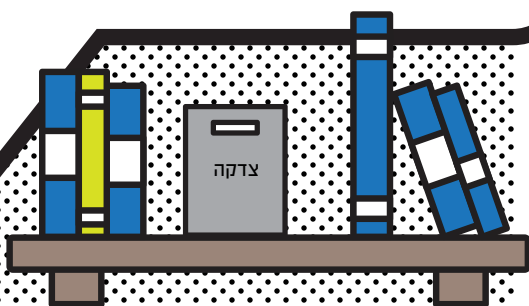
In reply to your question of whether to give aliyos to individuals whose status of Torah and mitzvah observance is unclear:

I was once asked this question and answered it, and the answer is in force now as well: the decision in this matter depends on numerous details, both regarding the conduct of the one who wishes to receive the aliyah, as well as the other congregants and the impression it will make on them. Just like any other matter done in public, the latter concern must be taken into account as well. After all this is clarified, those found in your location should make the appropriate decision.

However, understandably, based on the saying of Chazal that a person should always draw closer with the right hand and [push away with] the left, this is the approach that should be adopted here. What's more, it may not be necessary to push away at all, even with the left hand. To quote the pasuk: "The Torah's ways are pleasant, and all of its paths are peaceful."

(Letter of the Rebbe dated 18 Cheshvan 5717, Igros Kodesh vol. 14, pp. 95-96)

The importance of minhagim in general, and minhagei Chabad in particular, cannot be overestimated. However, when upholding a certain minhag may lead to machlokes, it may sometimes be preferable to follow a variant minhag for the sake of preserving peace, as is seen in the following letters.



AVOIDING
MACHLOKES

בשאלתו בענין לבישת טלית וחגורה לתפלה כשמתפללים בביהכ"נ שאינן נוהגים במנהגי אנ"ש. מובן שגם בזה נאמר כלל רבותינו שנואה המחלוקת, ואם אפשר לנהוג גם שם במנהג אנ"ש וכמובן באופן של שלום ונועם, כדאי הענין, ולשלול הענין דמחלוקת עבור זה, ומובן גם כן שהדברים אמורים בענין לבישת הט"ג אשר הנ"ל מוסיפים על אנ"ש והש"ץ שלהם נוהג להיות עטוף בטלית, משא"כ מנהגנו, וכיון שבאים להוסיף יש לוותר למלאות דרישתם, ויהי' הט"ג מורד על הכתף דוקא, אבל בהנוגע לחגורה שגורעים הם בזה, יש להשתדל בכמה השתדלויות להתפלל דוקא בחגורה. ובפרט שבזה הענין דהכון לקראת אלוקים ישראל.

(מכתב כ"ק אדמו"ר מיום ח' תשרי תשי"ח, נדפס באגרות קודש חט"ז ע' יב)

In reply to your question of whether to wear a tallis and a gartel when davening in a shul that does not follow the minhagim of Anash:

Our Rebbeim taught us that a person should despise machlokes. Obviously, this principle applies here as well. If you are able to follow the minhagim of Anash there as well—obviously, in a peaceful and pleasant manner—it is recommended to do so. There should be no machlokes for this purpose.

Understandably, this applies to the question of whether to wear a tallis. In this matter, the [congregants of your shul] are adding to the minhag of Anash by having the chazan wear a tallis, which we do not do. Since they are adding to our minhag, it is better to concede and fulfill their request. The tallis should specifically be lowered upon the shoulders [and not raised above the head]. However, the question of whether to wear a gartel is different. Here, they are detracting from our minhag; therefore, you should try your best to daven with a gartel.

(Letter of the Rebbe dated 8 Tishrei 5718, Igros Kodesh vol. 16, p. 12)

בנוגע אייער פראגע, אין נאמען פון די מתפללים שיחיו, וואס א טייל מתפללים זאגען אז מען זאל אנטאן א טלית צו דאווענן ביים עמוד, צו קבלת שבת און אויך שבת פארנאכט צו מנחה, און א טייל מתפללים זאגען, אז אין א נוסח אר"י שול, דארפמען ניט אנטאן קיין טלית, דאווענדיג ביים עמוד צו די אויבענדערמאנטע תפלות, און פרעגט מיין מיינונג אין דעם:

ענטפער:

דער מנהג פון ליובאוויטש - ווי איך האב געהערט פון מיין שווער כ"ק אדמו"ר דצוקללה"ה נבג"מ זי"ע, און זיינער צייט איז דאס אויך געדרוקט געווארען אין דעם "היום יום" י"ט כסלו ה'תש"ג, אין השליח צבור מתעטף בטלית, למנחה או למעריב, לא בשבת ויום טוב ולא בראש השנה,

פון דער צווייטער זייט אבער, פארפירען א מחלוקת צוליב דעם איז ניט כדאי, און אויב מען קאן דאס אויספירן גלאטיג אן מחלוקת, איז כדאי אז אויך אייער שול זאל זיך פירן ווי עס פירען זיך אלע אנשי ליובאוויטש, אז אין טלית דאווענט מען נאר אין דער פריה און יום כפור א גאנצע מעת לעת, און אויב עס איז א חשש פון א מחלוקת, איז גדול השלום, וואס צוליב שלום דארפמען נאכגעבען באשטימטע

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HALACHA

זאכען, אבער על כל פנים נאכגעבען נאר בנוגע דעם דאוונען שבת
צו מנחה, אבער ניט בנוגע צו קבלת שבת, וואס דענסטמאל זיינען
פראן אייניגע, וועלכע האלטען אז עס איז א סכנה בדבר*.

און השם יתברך זאל העלפען צו אפהיטען די מנהגי ישראל, ווארום
מנהג ישראל תורה היא און דאס בריינגט אויך הצלחה אין די ענינים
הגשמיים.

* ספרים דערמאנט בשערי תשובה או"ח סי"ח. זע אויך פרמ"ג שם.
שו"ת שם משמעון מהדו"ק סי' א-ב.

(ממכתב כ"ק אדמו"ר מיום כ"ד כסלו תשי"ב, נדפס באגרות קודש ח"ה ע' צא ואילך)

You write that some of the congregants say that the chazan
should wear a tallis for Kabbalas Shabbos as well as for Minchah
on Shabbos day, while others say that in a Nusach Ari shul, a
tallis should not be worn for these tefillos. In the name of the
congregants, you ask for my opinion.

The minhag of Lubavitch—as I heard from my father-in-law,
the Rebbe, and published in *Hayom Yom*, 19 Kislev 5703—is
that the chazan does not wear a tallis for Minchah or Maariv,
neither on Shabbos, nor on yom tov, nor Rosh Hashanah.

On the other hand, however, it is not worthwhile to get into
a machlokes for this. If this can be accomplished smoothly
without a machlokes, it is better for your shul to act as in all
Anshei Lubavitch shuls, namely, that a tallis is worn only in the
morning, and on Yom Kippur throughout the day. But if this
might lead to a machlokes, [you should follow the dictum that]
"peace is great" and in certain areas one must concede in order
to preserve peace.

However, you should concede only with regard to Minchah
on Shabbos, but not with regard to Kabbalas Shabbos. This is
because some are of the opinion that wearing a tallis at night is
associated with [spiritual] danger.

May Hashem help you uphold minhagei Yisrael, because
minhag Yisrael Torah he, and it also brings success in material
matters.

(Letter of the Rebbe dated 24 Kislev 5712, Igros Kodesh vol. 5, pp. 91-92) 

